



DECISION

POS/54/2025/KC

Complaint No. :

Name and address
of the complainant :

Mr. Muhammad Shahid,
R/o. Shop No. 239, Block-03, Karimabad, F.B. Area,
Karachi.

Name of the Agency
complained against :

Revenue / KMC

Name & Designation of
Investigating Officer :

Mr. Iqbal Nafees Khan
Regional Director, Karachi Central.

Subject :-

**NON-PAYMENT OF COMPENSATION AGAINST
DEMOLITION OF HOUSES FOR EXPANSION OF
ORANGI NULLAH**

COMPLAINT

Mr. Muhammad Shahid lodged a complaint on 16.04.2025 stating that his house situated in Sector 11 ½, Orangi Town, Karachi, was partially demolished in connection with the expansion of Orangi Nallah. He was assigned ID No. 3556 with the assurance of payment of compensation against the demolished property. After 1 ½ year his house was demolished again and his ID was changed as 3555. Upon repeated approaches to the concerned authorities he was informed that his house was additional cutting and the ID allocated to him belong to his neighbor. Now he is facing hardship as due to mistake of concerned office, no compensation has been paid to him.

2. Similar complaints have also been lodged by other complainants alleging that they have not been paid compensation against demolition of their houses for expansion of Gujjar Nallah and Orangi Nallah. Despite their repeated approaches to concerned authorities their grievances remains unresolved. Therefore, they sought intervention of this Institution for redressal of their grievances.

PROCEEDINGS

3. The complaints were examined and admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended in 2020) by condoning the delay. Upon submission of Affidavit on Form-"A" by the complainants, the matters were referred to the concerned agencies for submission of their reports.
4. In response, the Additional Commissioner-II, Karachi Division (ACK-II), vide letters dated 26.09.2024 and 30.06.2025, reported that the issue of compensation for affectees of Orangi, Gujjar and Mehmoodabad nullahs is presently sub judice before the Hon'ble Supreme Court of Pakistan in Constitutional Petition No. 09 of 2010. The Hon'ble Court, inter alia, directed that the Government of Sindh shall allot 80 square yard plots to identified affectees, numbering 6,932. It was further ordered that any family whose structure had been demolished but was not included in the list may submit its claim, along with supporting material, to the Commissioner's Focal Person within one month, and that each claimant be informed of the acceptance or rejection of such claim.
5. Pursuant thereto, ACK-II submitted that 747 individual applications and 1,235 applications through advocates were received. These claims were forwarded to the Metropolitan Commissioner, Karachi Metropolitan Corporation (KMC), and the concerned Deputy Commissioners for

verification, comments, and recommendations. Upon receipt of reports, all claims were examined and rejected. The decisions, along with status reports, were communicated to the concerned parties and submitted before the Hon'ble Supreme Court through the Advocate General, Sindh, vide letter No. CK/PIU Br./2025-60 dated 26.09.2024. The advocates were also duly informed.

6. During proceedings before this office, multiple hearings were conducted by the Regional Director, Karachi Central with the complainants and concerned agencies. It transpired that the majority of cases, pending in this office, were time-barred, while some involved family or related disputes. The complainants contended that they were unaware of the prescribed cut-off date. In this regard, ACK-II produced a copy of an advertisement published in the daily "Riasat" dated 01.05.2024, inviting submission of claims regarding missing identities from 02.05.2024 to 10.05.2024. However, no additional material was furnished to demonstrate wider publication.
7. Subsequently, ACK-II was directed to categorize all complaints, pending in this office, and submit a consolidated report along with supporting material. In compliance, a report dated 27.11.2025 was submitted categorizing the cases as follows:
 - **List "A"**: Cases wherein applications were submitted within the prescribed period in compliance with the Hon'ble Court's order, and decisions thereon were communicated vide letter No. CK/PIU Br./2024-60 dated 06.09.2025.
 - **List "B"**: Cases wherein applications were submitted beyond the cut-off date (time-barred).
 - **List "C"**: Cases involving family or other disputes.
8. ACK-II reported that the case of the complainant, Mr. Muhammad Shahid, falls within List "A". His case, and two other cases pending before this office, were submitted to the Commissioner, Karachi, within the stipulated time. The same were reviewed and rejected by the Commissioner, Karachi, and a report in this regard has been submitted before the Hon'ble Supreme Court through the Advocate General, Sindh, vide letter No. CK/PIU Br./2025-60 dated 06.09.2025.
9. Upon further inquiry, ACK-II informed that an NGO, namely "Karachi Bachao Tehreek (KBT)", is actively pursuing this matter before the Hon'ble Supreme Court. The Chief Organizer of KBT was called upon to clarify the status of these cases. In his report dated 23.04.2026, he stated that the applicants, whose cases are pending in this office, are included in the 6th list approved by the Deputy Commissioner, Karachi Central. He further stated that objections have been filed by KBT against the report submitted by the Commissioner, Karachi, before the Hon'ble Court. He also stated that a request has been made for fixation of the matter for hearing.

FINDING

10. I have examined the record and found that the subject matter is pending adjudication before the Hon'ble Supreme Court of Pakistan. In view thereof, the instant complaints are not maintainable before this office.

DECISION

11. Given the above, the cases are disposed of as sub judice before the Hon'ble Supreme Court of Pakistan.

12. This order shall also govern and dispose of 02 other complaints of identical nature as under:

SR. #	CASE NO.	COMPLAINANT'S	SUBJECT
01.	POS/50/2025/KC	Mr. Muhammad Arif.	COMPENSATION AGAINST DEMOLITION OF HOUSE FOR EXPANSION OF GUJJAR NALLA (ID NO. 5069-B)
02.	POS/172/2025/KC	Mr. Jamshed Alam Khan.	COMPENSATION AGAINST DEMOLITION OF HOUSE FOR EXPANSION OF GUJJAR NALLA (ID NO. 2882)

Given under my hand and seal of this office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz (PAS)
OMBUDSMAN SINDH
Karachi, the 30th April, 2026

OMBUDSMAN SINDH